

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jessica Kulig	Team: Team # 5	CCRB Case #: 201208048	☐ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 06/18/2012 10:30 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 12/18/2013	Precinct: 73		
Date/Time CV Reported Mon, 06/18/2012 10:39 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 06/22/2012 2:36 PM		
Complainant/Victim	Type	Home Address			
Witness(es)	Home Address				
Subject Officer(s)	Shield	TaxID	Command		
1. DT3 Michael Perez	02470	930939	WARRSEC		
Officer(s)	Allegation			Investigator Recommendation	
A . DT3 Michael Perez	Discourtesy: Det. Michael Perez spoke obscenely and/or rudely to § 87(2)(b)			A . Complainant Unavailable	

Case Summary

§ 87(2)(b) filed the following complaint over the telephone on June 18, 2012, generating original log number 12-32832. The CCRB received the complaint on June 22, 2012.

On June 18, 2012, § 87(2)(b) called 911 at 10:39 a.m. and reported to the operator that an unidentified officer with Shield No. 2470 (identified as Det. Michael Perez) had just arrested her unidentified male cousin. § 87(2)(b) later clarified in her phone statement on August 1, 2012 that the individual was not actually her cousin but her friend “§ 87(2)(b) § 87(2)(b) stated that the detective was rude and cursed at her, telling her, “Don’t fucking worry about it” (**Allegation A**). In her subsequent phone statement, she stated that the detective instead told her that it was “none of her fucking business.” § 87(2)(b) stated that she was “cursing out” the detectives as well.

§ 87(2)(g)

The undersigned investigator called § 87(2)(b) eight times between June 26, 2012 and July 12, 2012 at the number obtained from the IAB intake log and at numbers obtained through White Pages and LexisNexis searches. Calls could not be completed to the original phone number, and the complainant could not be reached at any of the additional numbers. § 87(2)(g)

§ 87(2)(g) The investigator called § 87(2)(b) on August 1, 2012 and obtained a phone statement. § 87(2)(g)

§ 87(2)(b) was unable to schedule a CCRB interview at the time of her phone statement. The investigator called § 87(2)(b) four more times between August 20, 2012 and August 27, 2012. The telephone number was not in service each time a call was placed. § 87(2)(b) filed a second complaint with IAB, which was assigned to the investigator on August 28, 2012. § 87(2)(b) provided two additional phone numbers. The investigator called § 87(2)(b) on one of the numbers on August 28, 2012 and left a voicemail. The investigator called § 87(2)(b) on the second number on August 29, 2012. The phone number was not in service. The investigator sent the first please call letter on June 27, 2012. The letter was returned on July 9, 2012 because of an insufficient address. The investigator sent a final please call letter on July 19, 2012. The final please call letter was returned on July 31, 2012. The investigator sent two additional please call letters on August 20, 2012 and August 27, 2012 to the updated address. The letters were not returned by the USPS. The investigator queried the NYC Department of Correction website on August 27, 2012. The query indicated that § 87(2)(b) was not incarcerated. The investigator performed a BADS search on August 27, 2012. The search indicated that § 87(2)(b) was not arrested. As of the date of this report, § 87(2)(b) has made no attempts to contact the CCRB or the investigator. Therefore, it is recommended that this case be closed as *complainant unavailable*.

Team: _____

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date